

25VECV02874 25VECV02874

County: los-angeles

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Case Number: 25VECV02874 Hearing Date: September 10, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

WENDELL GAYARES, an
individual; MILAGROS GAYARES, an individual,

Plaintiffs,

vs.

HRATCH DZHANOYAN and DOES 1 through 50, inclusive,

Defendants.

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CASE NO.: 25VECV02874

ORDER

DENYING PLAINTIFFS' MOTION FOR LEAVE TO FILE AMENDED COMPLAINT

I.

BACKGROUND

This case arises from a motor vehicle collision between Wendell Gayares ("Wendell") and Milagros Gayares ("Milagros") (jointly "Plaintiffs") and Defendant Hratch Dzhanoyan ("Dzhanoyan"). Plaintiffs allege that on November 11, 2024, Wendell was driving a Kia Forte with Milagros as a passenger when Dzhanoyan rear-ended their vehicle as Wendell signaled to change lanes. (See Compl. at 5.) Plaintiffs further allege Dzhanoyan failed to maintain a safe speed and following distance, causing Plaintiffs to sustain injuries. (See id. at 5.)

Plaintiffs now seek leave of this Court to file a second amended complaint.

II.

PROCEDURAL

HISTORY

On May 22,

2025, Plaintiffs filed their Complaint, alleging (1) Motor Vehicle; and (2) General Negligence.

On November

12, 2025, Plaintiffs filed a First Amended Complaint alleging (1) Motor Vehicle Negligence; (2) Negligent Entrustment; and (3) Respondeat Superior.

On February

18, 2026, Dzhanoyan and A
& A West Coast Distribution, Inc., filed a joint Answer to the Complaint.

On July 30,

2026, the Court denied Plaintiffs' Motion for Leave to File a First Amended Complaint.

On August 12,

2026, Plaintiffs filed the instant Motion.

On September

3, 2026, Dzhanoyan and A
& A West Coast Distribution, Inc., filed an Opposition.

On September

3, 2026, Plaintiffs filed a Reply.

A non-jury

trial is scheduled for February 24, 2027.

III.

LEGAL STANDARD

Code of Civil

Procedure § 473(a)[1] provides: "The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc. § 473(a)(1); see also Code Civ. Proc. § 576.)

The court has

broad discretion to permit amendments to pleadings, and “the court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Id.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion for leave to amend a pleading must comply with the procedural requirements of Rules of Court, rule 3.1324, under which the motion must include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See Rules of Court, rule 3.1324(a), (b).)

IV.

ANALYSIS

Plaintiffs

seek leave to assert a negligence claim against all defendants, a negligent entrustment claim and respondeat superior theory of liability against A & A West Coast Distribution Inc. and Does 1-100, and punitive damages allegations and a claim for punitive damages. (See Mot. at 4:16-17; See Declaration of Christopher C. Lee filed August 12, 2026 (“Lee Decl.”), ¶ 12.) Plaintiffs attach a copy of the proposed FAC. (See id., ¶ 11, Ex. A.) Plaintiffs’ counsel attests the FAC seeks to add factual allegations concerning the collision to support a claim for punitive damages. (See id., ¶ 13.) Plaintiffs’ counsel attests the proposed amendment is necessary and proper having discovered a factual basis for Plaintiff’s punitive damages claim on July 30, 2026. (See id., ¶¶ 8, 14-15.)

In

opposition, Defendants first argue the supporting declaration does not comply with rule 3.1324(b)(1)-(4) and rule 3.1324(a)(2)-(3). (See Opp. at 2:23-3:18, 4:9-12.) Defendants next argue denial for leave to add a negligent entrustment claim against A & A West Coast

Distribution Inc. ("West Coast") is mandated because it has agreed to stipulate and admits to vicarious liability. (See *id.*, at 5:25-28, 6:13-16, citing *Armenta v. Churchill* (1954) 42 Cal.2d 448, 457–458 and *Diaz v. Carcamo* (2011) 51 Cal.4th 1148, 1161; Declaration of Mark H. Herskovitz ("Herskovitz Decl."), ¶ 8.) Third, Defendants argue granting leave is unwarranted because Plaintiffs' proposed complaint is insufficient to support a punitive damages claim. (See *Opp.* at 6:19-24, 9:8-10.) Fourth, Defendants argue they would suffer prejudice because they would have to (1) propound discovery related to Plaintiffs' punitive damages claim at a significant time and expense, (2) obtain new counsel, and (3) file motions regarding meritless proposed allegations. (See *id.*, at 13:5-11, 13:26-14:9.)

In reply, Plaintiffs argue the proposed FAC is intended to replace the original form complaint but does not seek to change the fundamental nature of this action. (See *Reply* at 2:8-12.) Plaintiffs argue the proposed FAC plainly identifies the additional allegations and claims, and the declaration complies with rule 3.1324(b). (See *id.*, at 3:10-25.) Plaintiffs argue Defendants' futility arguments are premature. (See *id.*, at 4:3-6.) Finally, Plaintiffs contend the mere prospect of additional discovery is not prejudicial and any necessary discovery can be completed by the cutoff date. (See *id.*, at 5:8-11.)

As an initial matter, the Court will construe the Motion as requesting leave to file a SAC, as the FAC was filed on November 12, 2025, and is the operative pleading. The Court notes that some of the proposed changes Plaintiffs seek leave to include are already pled in the FAC.

The Court finds Plaintiff does not substantially comply with rule 3.1324(a)(2)-(3). The Motion attaches a copy of the proposed pleading as required by rule 3.1324(a)(1). Were the Complaint the operative pleading, the Court would have agreed with Plaintiffs the Motion complied with rule 3.1324(a)(2)-(3) since the proposed FAC clearly contains only proposed additions as it is pled in a different format than the judicial council form Complaint. In essence, it would be clear to the Court that Plaintiffs would be deleting all allegations in the judicial council form Complaint to be superseded by all allegations in the FAC. However, the FAC is the operative complaint. And thus, counsel's testimony of the substance of the proposed changes does not comply with 3.1324(a)(2)-(3) as it does not identify the location of the proposed additions or deletions. (See

Lee Decl., ¶ 12.) Thus, the Motion will be denied on this ground.

The supporting declaration otherwise complies with rule 3.1324(b). It identifies the substance of the proposed changes and thus it describes the effect of the amendment. (See *id.*, ¶ 12.) Plaintiffs' counsel also attests when he discovered the relevant facts (April 30, 2026 and July 30, 2026), which speaks to why the amendment was not made earlier. (See *id.*, ¶¶ 7-8.) Plaintiffs' counsel also attests why the proposed amendment is necessary and proper (to assert Plaintiffs' theories of liability supported by discovery). (See *id.*, ¶¶ 14-15.) Thus the Motion complies with rule 3.1324(b) but not 3.1324(a).

Next, the

Court agrees Plaintiffs' claim for negligent entrustment is not viable because West Coast's counsel has agreed to stipulate and admits to vicarious liability for its employee's negligence. (See *Herskovitz Decl.*, ¶ 8.) Leave to amend can be denied where the proposed amendment would be futile. (See *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 231 ["The proposed amendment would have been futile because it was barred by the statute of limitations."]; see also *Jo Redland Tr., U.A.D. 4-6-05 v. CIT Bank, N.A.* (2023) 92 Cal.App.5th 142, 161, as modified (June 28, 2023) ["[A] court has ample discretion to deny a motion for leave to amend where a proposed amendment is legally futile or where there has been inexcusable delay in making the motion."].) The Supreme Court affirmed the holding in *Armenta*: "an employer's admission of vicarious liability for an employee's negligent driving in the course of employment bars a plaintiff from pursuing a claim for negligent entrustment." (*Diaz*, 51 Cal.4th at 11514, 1161.) Accordingly, Plaintiffs' proposed negligent entrustment claim against West Coast is legally futile and leave would be denied as to this claim.

The Court will

not consider the sufficiency of the proposed punitive damages allegations on this Motion as "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (*California Cas. Gen. Ins. Co. v. Superior Ct.* (1985) 173 Cal.App.3d 274, 280–81, disapproved of on other grounds by *Kransco v. Am. Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Finally, the

Court finds no prejudice to Defendants.

“Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Plaintiffs do not bring this Motion on the eve of trial, which is scheduled for February 24, 2027. The proposed pleading does not drastically expand the scope of issues such that it would not be feasible for the parties to conduct punitive damages discovery as necessary before the trial date. Further, while Defendants would incur an increased burden of conducting discovery or filing motions to attack punitive damages allegations, having to engage in discovery practice and filing motions is a basic feature of litigation, not proof of actual prejudice.¿

In sum, the

Motion fails to comply with rule 3.1324(a)(2)-(3) and thus, the Court DENIES Plaintiffs' Motion for Leave to Amend.

V.

CONCLUSION

Based on the

foregoing, the Court DENIES Plaintiffs' Motion for Leave to Amend.

IT

IS SO ORDERED.

DATED: September 10, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.